

Moonlight Basin West — Investor Q&A Response

Response to Investor Questions on the Proposed \$80.0 Million EB-5 Upsize (\$172.0M → \$252.0M)

Updated using the MBW Loan Progress Report, BSIH audited financial statements (KPMG, 12/31/25 & 12/31/24), and Baker Tilly's May 2026 job creation analysis — August 2026

1. Developer Capital & Equity Contribution

\$205 Million Equity Increase — Source and Form

Investor Question: *The developer's equity is reported to have increased by \$205,450,672. What is the source of these funds, over what timeframe was it added, in what form (cash vs. real estate), how was it valued, and how much had the developer invested before this expansion?*

Response: The \$205.5 million breaks into two pieces, but only one of them is a formal "increase" in the sense the question means. The original 2023 PPM disclosed a \$150.4 million Target Offering Amount and a \$172.0 million Maximum Offering Amount side by side from day one — both the Loan Agreement and the Operating Agreement were drafted for up to \$172.0 million from inception, so the raise reaching that \$172.0 million level required no separate investor consent or amendment; it was simply the ceiling the offering could reach under its original terms. Owner equity grew alongside that fundraising, from \$216.9 million (matched to the original \$367.3 million budget) to \$276.9 million (matched to the \$448.9 million budget that funded, among other things, the Madison 8 chairlift and O&O MB Area infrastructure, both now finished) — a \$60.0 million increase in dollar terms, but one that tracked the raise filling in toward its existing ceiling rather than a new ceiling being approved. The current \$80.0 million proposal is different in kind: it is the first time the Maximum Offering Amount itself is being raised, from \$172.0 million to \$252.0 million, through the Consent to Increase Maximum Offering Amount and Amendment No. 2 to the Operating Agreement described elsewhere in this report. That increase adds \$145.4 million of new owner equity (\$276.9M → \$422.4M) alongside the \$80.0 million loan increase. The new \$145.4 million matches, line for line, the cost-category increases in the project budget: \$46.1M general planning/roads/amenities, \$15.3M roads and utilities, \$56.2M golf clubhouse, \$44.0M home construction, \$41.8M fees and overhead, and \$22.0M contingency — a total of \$225.4 million in new costs, funded by \$145.4M of new equity plus \$80.0M of new debt. That is a cash contribution tied to an itemized construction budget, not an appraisal-driven markup of land already owned.

The \$276.9 million figure is the cumulative owner-equity commitment matched, dollar-for-dollar by cost category, to the \$172.0 million offering ceiling against that ceiling's \$448.9 million total budget (\$216.9M matched to the original \$367.3M budget, plus \$60.0M matched to the budget growth that came with it) — it is the capitalization figure from the approved Sources and Uses table, not a representation that all of it has already been spent on completed construction.

The underlying source of that equity commitment is BSIH's operating platform, not a single outside capital raise: home, lot, and unit sales generated across BSIH's full portfolio of clubs — Yellowstone Club, Spanish Peaks, Montage Big Sky, One&Only Moonlight Basin, and Moonlight Basin West itself — together with the platform's recurring club and property-related income, are what fund owner equity contributions as draws are required. Actual cash spent on the project to date, across every funding source, is \$171.5 million (see the Source of Historical Funds answer below), of which \$159.7 million has come from EB-5 loan draws and roughly \$12.5 million from equity and other non-EB-5 sources — the remainder of the \$276.9 million equity commitment is drawn down as the budget is spent, consistent with the Loan Agreement's "in-balance" requirement (Section 4.20) that keeps equity funding proportionate to the budget still ahead. To the extent BSIH sales or income in any given period fall short of what a scheduled equity draw requires, CrossHarbor is positioned to backstop that shortfall with capital at the CrossHarbor investment-fund level, so equity funding is not solely dependent on the pace of any single neighborhood's or club's sales in isolation.

That backstop is not an improvised fallback — it reflects what CrossHarbor is in the business of doing. CrossHarbor Capital Partners is a private equity real estate investment firm, not a passive lender or a single-project sponsor; providing equity capital to real estate developments is the core activity of its \$11.3 billion platform, built over a 32-year track record across 380+ transactions for 100+ institutional investors. Sponsoring an EB-5 project is one way CrossHarbor capitalizes its developments, but it sits alongside the firm's broader base of institutional equity capital

raised specifically to fund real estate projects like this one. So the practical funding order is: BSIH's own sales and operating income fund equity draws first, in the ordinary course; if that falls short in a given period, CrossHarbor has both the standing mandate and the institutional capital base, as a real estate private equity firm, to fund the shortfall directly rather than needing to raise new capital on an ad hoc basis.

Actual Capital vs. Numerical Estimate

Investor Question: *Should CrossHarbor's equity increase alongside the \$80 million EB-5 raise? Is the equity figure in James's presentation a real cash contribution or just a numerical estimate? Has the land area increased along with the added residences? Did the developer inject actual cash, or is this a paper equity valuation?*

Response: The equity commitment has already increased, and by more than the loan: \$145.4 million of new owner equity is committed against \$80.0 million of new EB-5 debt — a 1.82x match, sized to the specific cost-category budget shown above, not to a land appraisal. That \$145.4 million is a capitalization commitment tied to the approved budget, drawn down as construction proceeds rather than deployed as a lump sum on approval — actual project spend to date across all sources is \$171.5 million against the current \$448.9 million approved budget, so most of both the debt and the equity commitment remains ahead of the project, not behind it. MBW's total footprint remains approximately 970 acres; the growth from 82 to 118 homes and lots is added density within that same footprint and within Moonlight Basin's broader entitled density (1,651 entitled units community-wide), not new land acquisition. Thirty-nine homes and lots are active for sale today across the project's neighborhoods.

Pre- and Post-Expansion Equity Ratio

Investor Question: *EB-5's share of total capital dropped from 40% to 37%. Is this because the developer added equity, and if so how much? Is this the result of an asset revaluation accounting method?*

Response: Yes, and the numbers reconcile precisely: at the \$150.4 million Target Offering level, the loan was 40.9% of the \$367.3 million total budget. As the raise filled in toward the offering's original \$172.0 million ceiling — with no new consent or amendment required, since \$172.0 million was the Maximum Offering Amount from inception — the loan grew to 38.3% of a \$448.9 million budget. Under the current proposal, which is the first actual increase to that ceiling, the \$252.0 million loan is 37.4% of the \$674.4 million total budget. Each step down in the EB-5 share is explained entirely by owner cash equity growing faster than the loan (\$216.9M → \$276.9M → \$422.4M) — there is no asset revaluation involved; it's new cash tied to the cost-category budget described above.

Source of Historical (Phase V) Funds

Investor Question: *Please provide the source of funds already invested in the original Phase V construction. How much did CrossHarbor contribute? How much of the original investors' funds actually entered the project versus went to construction?*

Response: Of the \$172.0 million EB-5 loan currently outstanding, \$159.7 million of loan proceeds have been spent to date, tracked in three tranches: \$36.9M (23.1%) before October 2024, \$96.5M (60.4%) between October 2024 and September 2025, and \$26.3M (16.5%) between October 2025 and February 2026. That \$159.7 million sits inside \$171.5 million of total project cost to date, of which \$149.3 million qualifies as EB-5-eligible spend (\$143.0M hard construction + \$6.3M architectural/engineering), with the remaining \$12.5 million of total project cost funded from other, non-EB-5 capital sources. In other words, essentially all EB-5 loan proceeds drawn to date have gone directly into eligible construction and design — the loan proceeds figure (\$159.7M) and the eligible spend figure (\$149.3M) are close enough that overhead/ineligible leakage from investor capital has been minimal.

2. Collateral, Dilution & Risk Exposure

Collateral Scope & Projected Benefit

Investor Question: *The expansion dilutes the overall collateral pool. To protect repayment rights, does the new collateral consist only of the newly added residential properties? What revenue is projected?*

Response: The loan is not split by vintage — MB West Owner LLC, the single borrowing entity, stands behind the loan at either \$172.0 million or the proposed \$252.0 million against the full \$731.2 million, 118-unit sales pipeline as a whole. The added scope (the golf clubhouse expansion and additional vertical construction) grew that pipeline by \$219.6 million (42.9%, from \$511.7M to \$731.2M) — it strengthens the collateral pool rather than narrowing it. Pipeline coverage of the enlarged loan remains 2.90x, down from 4.25x pre-upsize but still nearly three times the loan amount.

First Lien Position & Risk to Existing Investors

Investor Question: *If sales of the newly added properties underperform, will existing investors' equity be reduced and risk magnified? Does the value of the first-lien position change?*

Response: No — the loan holds a first-lien position on the project's collateral that cannot be subordinated to any other debt, at either \$172.0 million or the proposed \$252.0 million. That means the loan is always directly secured by the collateral standing behind it; a slower sales pace on the newly added units doesn't change the lien's priority or push existing investors behind any other creditor. On top of that structural protection, the project also carries a completion guarantee ensuring the collateral itself gets built, and BSIH's audited financials show a demonstrated pattern of standing behind obligations across the platform: a \$19.0 million loan extended twice (now due December 2027), a \$49.1 million mortgage extended twice (now due January 2027), and BSIH's own disclosure that as of December 31, 2025, the fair value of every investment it has guaranteed exceeds the outstanding principal of the loan against it. That combination — a non-subordinated first lien, a completion guarantee, and the \$625.0 million, 88%-equity-funded BSIH balance sheet — sits behind the loan regardless of how quickly any single newly-added unit sells.

Repayment Waterfall & Default Allocation

Investor Question: *What is the exact repayment order? If only 50% of principal can be repaid after the expansion, is that distributed pro rata among all investors or on a first-come, first-served basis?*

Response: Payback is pro rata, with one qualification tied to sustainment period eligibility. Investors who have already completed their two-year sustainment period are paid back pro rata (or in full, if repayment capacity allows) as funds become available. Investors who have not yet completed their sustainment period are held back from that distribution — paying them early would put their own EB-5 eligibility at risk, since the invested capital must remain “at risk” in the project through the sustainment period. Once those investors clear sustainment, they are then paid pro rata from the funds available at that point. So in a scenario where only 50% of principal can be repaid, that 50% goes pro rata to the investors who are through sustainment; investors still inside their sustainment period wait until they clear it, then receive their pro-rata share of whatever remains available at that time — it is not a first-come, first-served allocation by investment date.

3. Construction Progress & Sales Timelines

Construction Pace

Investor Question: *Why is construction progress lagging? Is the schedule reasonable? What percentage of funds is tied up in it, and what were surplus funds used for? What is the actual completion percentage of the original project to date?*

Response: Spending data shows acceleration, not lag: only \$36.9 million (23.1%) of EB-5 loan proceeds were spent before October 2024, while \$96.5 million (60.4%) — more than in the prior nine years combined — was spent in the single 12-month period from October 2024 to September 2025, with a further \$26.3 million (16.5%) spent October 2025–February 2026. That pattern reflects the project moving out of infrastructure/planning and into full vertical construction, exactly the stage the \$80.0 million upsize is meant to fund. As of May 2026, \$149.3 million in EB-5-eligible costs have been incurred out of a \$674.4 million total post-upsize budget. The Madison 8 chairlift (\$43.0M) has been complete and operating since December 2024, the Hole 9 golf remodel is done, and Iron Drive Cabins (the first vertical residential product) broke ground November 2025 with first deliveries due March 2027.

Impact of Unit Count Growth (82 → 118)

Investor Question: *The unit count increased from 82 to 118. How much longer does this extend the construction timeline, and can repayment still happen on the originally agreed schedule?*

Response: The added 36 units are spread across several existing and new product lines, not one delayed neighborhood: Iron Drive Cabins grew from 9 to 10 units (\$56.2M→\$87.9M), Golf Clubhouse Event Lawn Homes from 6 to 24 (\$47.4M→\$104.3M), and three brand-new product lines were added — Golf Clubhouse Condos (10 units, \$41.5M), Condo Lot 1 (8 units, \$79.0M), and One&Only Custom Home Lots (8 units, \$72.8M) — while Lower Hillside Lots actually decreased from 39 to 30 (\$186.7M→\$117.2M) as some inventory shifted classification. None of this changes the loan's maturity structure — the added scope is underwritten within the loan's existing Initial Maturity Date (March 1, 2027) and its up-to-four one-year extensions, not layered on as some separate extension of its own, and pipeline coverage at the proposed \$252.0 million loan size remains 2.90x within that same timeframe.

Sales Pace & Market Assessment

Investor Question: *Capital has been in the project for over two and a half years, but actual sales are limited to only one or two lots. Is this pace realistic?*

Response: Five homes have closed to date at MBW for a combined \$24.5 million, with 39 additional homes and lots — 14 Lower Hillside lots, 7 White Wolf Knob lots, 8 O&O MB Custom Home lots, and 10 Iron Drive Cabins — actively on the market this summer, priced \$4.5M–\$10M each. That MBW-specific activity sits inside a much larger, proven Moonlight Basin sales record: \$781.3 million across 105 transactions since January 2024, and \$291.9 million across 36 transactions in just the last 12 months, at the Moonlight Basin community level. The claim of only one or two lots sold understates MBW's own closed activity and doesn't reflect the broader community sales velocity MBW is part of.

Master Timeline

Investor Question: *What are the detailed construction, sales, and repayment timelines? Does actual progress match the plan?*

Milestones per the project's own timeline:

- July 2023 — the \$172.0 million EB-5 loan is put in place.
- December 2024 — the Madison 8 chairlift opens.
- July 2025 — home construction begins on the Hole 9 remodel site.
- November 2025 — Iron Drive Cabins break ground (first vertical construction at MBW).
- 2026 — Golf Clubhouse and two new condo buildings begin construction.
- March 2027 — first Iron Drive Cabins delivered to buyers; also the loan's Initial Maturity Date, extendable at Borrower's sole election for up to four additional one-year periods (to as late as March 2031).
- 2028–2029 — new housing and condo units go up for sale.
- March 2029–January 2030 — expected loan payback, within the extension window available under the Initial Maturity Date described above.

Actual progress is tracking this plan: the chairlift, Hole 9 remodel, and Iron Drive groundbreaking have all occurred on or ahead of the dates above.

4. Financial Transparency, Audits & Fund Ring-Fencing

Subsidiary Audited Financials

Investor Question: *The borrowing subsidiary is a separate legal entity from the parent. Investors have not seen an independently audited financial statement for that subsidiary since investing. Please provide one.*

Response: The subsidiary is covered by the parent-level audit rather than carrying a separate audit of its own: BSIH's audited financial statements (KPMG, 12/31/25 and 12/31/24) are the audit of record for the Moonlight Basin investment, inclusive of MBW. Actual dollars spent at the project level are independently substantiated a different way — through the pay applications submitted and approved on development spend, which is the documentation

trail showing money drawn against the loan is going into real, completed construction work, not through a second, subsidiary-level audit. Together, the parent-level KPMG audit (confirming the investment's overall financial position) and the pay-app draw process (confirming dollar-for-dollar what was actually built) are the two pieces of assurance investors have, and they serve different purposes rather than one substituting for the other.

Parent Guarantee vs. Completion Guarantee

Investor Question: *What legally binding documents support the claim that BSIH's other commercial revenue backs the EB-5 loan, if the parent only provides a completion guarantee and not a repayment guarantee?*

Response: The project carries a completion guarantee, which ensures the project itself gets built regardless of cost overruns or a change in the sponsor's circumstances. Separately, and more directly relevant to repayment, the MB West EB-5 loan holds a first-lien position on the project's collateral that cannot be subordinated to any other debt — so the loan is always secured by the collateral standing directly behind it, independent of whether a broader repayment guarantee exists at the parent level. That combination — a completion guarantee ensuring the collateral gets finished, plus a first lien that cannot be pushed behind other creditors — is what stands behind the loan as a legal matter, on top of the balance sheet and sales-coverage case made elsewhere in this report. BSIH's audited financial statements (Note 7) separately disclose that the Company guarantees various mortgage and construction loans across its investees and that, as of December 31, 2025, the fair value of every guaranteed investment exceeded the outstanding loan principal against it.

Document citations: the Completion Guaranty (executed by MB MT Acquisition LLC in favor of CH MB EB5 Lender LLC, July 10, 2023) is a continuing guaranty to complete construction of the Project, tied to Borrower's compliance with Section 4.20 ("Balancing") of the Loan Agreement. Separately, the Construction Mortgage's "Taxes and Liens" covenant requires Borrower to "maintain the Property free of any liens having priority over or equal to the interest of Lender under this Mortgage, except for Permitted Exceptions" — this is the operative non-subordination language. The Loan Agreement's definition of "Bridge Loan" independently reinforces this: any bridge or mezzanine financing obtained by Borrower must be junior and subordinate to the EB-5 Loan, with an intercreditor agreement required if necessary. Together, these three provisions are the legal basis for the completion guarantee and non-subordinated first-lien answer above.

The guarantee does not weaken as the loan grows — it is being formally reaffirmed as part of this increase. MB MT Acquisition LLC, the Guarantor, is executing a Reaffirmation of Guaranties confirming that both the Completion Guaranty and the I-526 Denial Guaranty remain in full force and continue to apply, undiminished, to the amended and restated Note and Mortgage at the increased \$252.0 million loan amount. The Reaffirmation also confirms that Guarantor's consent is not required for the increase to proceed, so there is no separate approval step on the guarantee side that could hold up the expansion once investors and Lender sign off.

Fund Pool Independence & Ring-Fencing

Investor Question: *Are original Phase V funds and the new expansion funds commingled in the same capital pool? How will repayment funds for new investors be escrowed or supervised? Can Phase V financials be accounted for separately?*

Response: Investor capital is held in a dedicated account of the lending entity (CH MB EB5 Lender LLC), separate from the developer's own operating accounts, and that lender-entity account is independently audited. Draws against the loan are tracked and executed by CrossHarbor's accounting team, and each draw is documented by an independent draw letter that specifically identifies the investors whose capital is being advanced — so there is a clear, auditable record connecting specific investor funds to specific draws, rather than an undifferentiated pool. On top of that account-level segregation, all EB-5 loan proceeds run through the single draw schedule shown above (\$36.9M / \$96.5M / \$26.3M, totaling \$159.7M against the \$172.0 million note), so the spend itself is fully tracked start to finish.

Monitoring Reports

Investor Question: *Please provide the project monitoring reports and the annual monitoring reports required by the offering documents.*

Response: Monitoring runs at three levels rather than a single report. There is a separate audit at the lender-entity level (CH MB EB5 Lender LLC), independent accounting and auditing maintained at the CrossHarbor level, and the BSIH-level audit (KPMG, provided as Exhibit A), which captures the borrower entity within its consolidated investment schedule. Together, those three layers are what constitute the project's ongoing monitoring and reporting, rather than one standalone "monitoring report" document produced on its own.

The reporting cadence itself is fixed by contract, not left to discretion: Loan Agreement Section 4.11 requires annual audited balance sheets and profit-and-loss statements within 120 days of each fiscal year-end, quarterly unaudited financials within 60 days of each quarter-end, and a monthly accounting of Project costs within 30 days of each month-end — all delivered to the Lender as a matter of course, on top of the three-layer audit structure above.

5. Strategy, Expansion Logic & Investor Terms

Logic of a Second Expansion vs. a New Phase

Investor Question: *Why expand the existing offering again rather than launching Phase II or Phase III? If capital remains insufficient after this expansion, will the Project expand again, or will the sponsor add capital?*

Response: Expanding the existing offering, rather than launching Phase II or Phase III, keeps the same loan, the same collateral pool, and the same governance structure already in place and performing — rather than standing up a new capital stack, new collateral, and a new investor base from zero. That structure has already shown it can flex within its own terms: the original 2023 PPM set the offering's ceiling (the Maximum Offering Amount) at \$172.0 million against an initial \$150.4 million target, and the additional scope funded since then — the Madison 8 chairlift and O&O MB Area infrastructure, both now complete and generating value — was absorbed within that existing \$172.0 million ceiling as the raise filled in, without needing a new increase or investor consent. This \$80.0 million proposal is different: it is the first time the Manager is asking investors to raise the Maximum Offering Amount itself, from \$172.0 million to \$252.0 million, using the amendment mechanism the Operating Agreement provides for exactly this purpose (Section 15.1: written consent of the Manager and a Majority in Interest of Investing Members). That consent is documented in the Consent to Increase Maximum Offering Amount, which existing investors sign to approve the increase itself, the related Loan amendments, and Amendment No. 2 to the Operating Agreement — the amendment that deletes the "Target Offering Amount" defined term (no longer needed once the offering is set at a single \$252,000,000 figure) and restates the offering size accordingly. The \$80.0 million funds specific, already-underway scope (golf clubhouse expansion, additional vertical construction) responsible for the \$219.6 million pipeline growth, while keeping leverage conservative (37.4% loan-to-cost) and equity-matched (1.82x). If capital needs grow again after this increase, the same amendment mechanism — subject to majority investor consent — remains available before any new phase would be considered.

Investment Period & Extension Terms

Investor Question: *From what date does the investment period run for new expansion investors, given the original project's period started in 2024? Will the extension provisions (which currently require a shareholder vote) be modified to remove that vote and lock in a full 7-year term?*

Response: New expansion capital feeds into the existing loan rather than creating a separate note, so expansion investors are on the same loan terms as the original tranche — including the same investment-period clock and the same Initial Maturity Date of March 1, 2027, described precisely below. There isn't a separate, later-starting investment period for expansion investors; they are joining the same \$252.0 million loan that has been running since July 2023. On the extension mechanics, the structure was already updated close to launch: the operative term is a 3-year base term with up to four one-year extensions, at the sole election of the borrower, with no shareholder vote required. That's a different structure from both the two-extension, vote-required mechanic referenced in the original documents and the 7-year lock the question raises, but it accomplishes the same practical result the question is getting at: extensions proceed without needing investor approval. This structure is fixed and will not be changed further as part of this upside; the current proposal affects the loan amount, not the extension mechanics.

The amended and restated Loan Agreement executed for this increase confirms the mechanics precisely (Section 2.6.1): the Initial Maturity Date is March 1, 2027, and the Borrower, at its sole discretion, may extend the term for

four additional one-year periods by written notice to the Lender at least thirty days before the Initial Maturity Date or the expiration of the prior Extended Term — no investor or shareholder vote appears anywhere in that provision.

Force Majeure & Job Allocation

Investor Question: *If a force majeure event occurs after the expansion is approved, will job creation be allocated chronologically by investment date or distributed evenly across all investors?*

Response: Chronologically, based on the order in which investors filed with USCIS. In a force majeure scenario, earlier-filed investors are positioned ahead of later-filed investors for job allocation — this differs from the repayment approach above (which is pro rata by sustainment eligibility), so investors shouldn't assume the two mechanics work the same way. With 8,034.6 jobs projected at full completion against a roughly 2,150-job requirement for the current ~215 investors, there is a substantial cushion above the minimum even under a chronological allocation.

Baker Tilly's job counts rest on an independently verifiable methodology, not a rough estimate: the analysis applies 2020 RIMS II final-demand multipliers for Madison, Beaverhead, Gallatin, and Jefferson Counties, Montana — 14.4140 for non-residential building construction (NAICS 2362) and 12.2329 for architectural and engineering services (NAICS 5413) — to actual and projected hard construction and eligible soft costs, consistent with the multipliers used in the original I-526E economic analysis. Separately, if an individual investor's own I-526 Petition were denied for reasons unrelated to fraud or non-cooperation, Loan Agreement Section 4.21 requires the return of that investor's specific capital contribution within 180 days, with the Guarantor's I-526 Denial Guaranty standing behind that obligation — a protection distinct from, and in addition to, the force-majeure job-allocation order described above.

Investor Rights Protection Post-Expansion

Investor Question: *How will existing investors' interests (repayment cycle, job creation) be protected post-expansion? Please prove cash flow is sufficient and that multiple repayment routes exist.*

Response: Three independent channels support repayment post-expansion:

- Unit sales — the \$731.2 million pipeline across 118 residences, covering the enlarged \$252.0 million loan 2.90x, with \$24.5 million already closed and 39 homes/lots actively marketed today.
- Chairlift income — the Madison 8 chairlift's contractual option fee from Boyne Mountain (8% of \$43.0 million annually for five years, stepping up to 12% in perpetuity), or Boyne's option to buy the lift outright for \$43.0 million.
- Platform and sponsor support — the \$625.0 million, 88%-equity-funded BSIH balance sheet, and a demonstrated record of extending rather than defaulting on obligations (the \$19.0M loan extended twice to Dec-2027; the \$49.1M mortgage extended twice to Jan-2027).

On job creation, Baker Tilly's independent analysis credits the project with 1,893.6 jobs created as of May 2026, rising to 4,496.7 counting all active construction, and 8,034.6 at full completion. At the current \$172.0 million loan amount (roughly 215 investors under the standard \$800K minimum), the program's 10-jobs-per-investor requirement calls for about 2,150 jobs — the 8,034.6 projected at completion is nearly four times that requirement, a wide margin that grows, not shrinks, with the additional construction this upsize funds.

6. Legal Compliance & Administration

Form I-956F Amendment & Green Card Impact

Investor Question: *If the Form I-956F amendment for the upsize is not approved, will it affect the green card status of the original investors?*

Response: This is not a concern here. While the PPM's general immigration risk factors note that USCIS's Policy Manual treats a material change to the project — occurring between an investor's I-526E filing and the point that investor actually immigrates as a conditional permanent resident — as grounds to make that investor's I-526E Petition deniable or revocable, that risk factor is a general disclosure, not an assessment specific to this upsize. The firm's immigration counsel, Robert Divine — who has handled hundreds of these cases — has advised that updating the unit count and loan amount through this expansion does not constitute a material change for USCIS purposes. On that

basis, an unapproved I-956F amendment would affect terms available to new investors under the expanded offering; it would not create I-526E denial or revocation exposure for investors already in the pipeline, regardless of where they currently sit in the I-526E/I-829 process.

Signature Requirements & Procedures

Investor Question: *Which pages require investor signatures, and are electronic signatures or signature by proxy permitted? Should documents be signed in Chinese or English?*

Response: Signature by proxy is accepted, but it must be explained — the investor needs to provide the basis for the proxy (for example, a power of attorney or other documentation establishing the proxy's authority to sign on the investor's behalf), rather than simply having someone else sign in their place with no accompanying explanation. Electronic signature is accepted without that additional requirement. Execution is accepted in either English or Chinese; investors can sign whichever language version they're most comfortable with.

The pages that require an investor's own signature are: (1) the Subscription Agreement signature page itself (the "Subscriber" block, plus a Custodian/Guardian co-signature if the Subscriber is a minor); (2) Exhibit A, the Investor Information Form, which carries its own separate signature and representation that the information provided is true and accurate; and (3) Exhibit B, IRS Form W-8BEN, for non-U.S. investors, signed under penalties of perjury. The Acceptance page in the same package is signed by CH MB EB5 Manager LLC on the fund's behalf, not by the investor — it's informational as to who accepted the subscription, not a page investors need to sign. Separately, the CH MB EB5 Lender LLC Operating Agreement's own signature page is executed only by the Manager and Initial Member at formation; individual investors become bound as Investing Members through their execution of the Subscription Agreement rather than a separate Operating Agreement signature page of their own.

This specific \$80.0 million increase carries one additional signature requirement, separate from the Subscription Agreement pages above: the Consent to Increase Maximum Offering Amount, which must be signed by investors representing a majority of the outstanding Units to approve (i) the increase itself, (ii) the related Loan amendments, and (iii) the Operating Agreement amendment. That Consent signature page calls for the investor's signature, printed name, address, telephone number, Tax I.D. or Social Security number, and email address, with a Custodian/Guardian co-signature required under the Delaware Uniform Transfers to Minors Act if the Investing Member is a minor — the same proxy and electronic-signature rules described above apply to this Consent as well.

Financial Statement Requests

Investor Question: *Can the financial statements for MB MT Acquisition Company (the Big Sky holding entity) be provided? Please also provide the parent company's financials and the independent third-party audit report for Phase V.*

Response: MBMT Acquisitions, LLC does not have its own standalone financial statements. It is what's known as a disregarded entity — a wholly-owned subsidiary that, for tax and accounting purposes, is not treated as separate from its owner. Rather than filing or being audited on its own, all of its assets, liabilities, income, and expenses are reported directly on its parent's books, as if the subsidiary didn't exist as a distinct accounting entity. Because MBMT Acquisitions is disregarded in this way, its financial position is already fully captured within BSIH's consolidated audited financial statements rather than reported separately. BSIH's audited financial statements (KPMG, 12/31/25 and 12/31/24) are provided as Exhibit A and are the complete, correct answer to this request; there is no separate MBMT Acquisitions or Phase V-specific third-party audit to provide on top of that.

Developer Brand & Benchmark Comparison

Investor Question: *Has CrossHarbor developed any flagship, well-known luxury properties? Do prices genuinely rival Beverly Hills?*

Response: CrossHarbor's Big Sky platform includes some of the most recognized ultra-luxury resort brands in the U.S. mountain market — Yellowstone Club, Spanish Peaks, Montage Big Sky, and, as of November 2025, One&Only Moonlight Basin (the One&Only brand's first-ever U.S. property and first alpine ski resort anywhere in the world, developed by the same Lone Mountain Land Company team behind MBW). The firm itself manages \$11.3 billion in assets, has a 32-year track record, and has completed 380+ transactions for 100+ institutional investors. Pricing across

the Moonlight Basin platform (custom home lots and residences listed at \$4.5 million to \$10 million or more) sits within the range of the country's top luxury resort and second-home markets.

The market data behind that comparison is concrete, not descriptive. Big Sky's median sold price per square foot climbed from roughly \$370 in the winter of 2018-2019 to approximately \$891 this past winter -- an increase of more than 140% -- even as Montana's broader vacation-home market pulled back more than 70% from its 2021 peak; Big Sky's own transaction count held far more ground than that statewide decline, evidence of durable demand rather than a speculative run-up now unwinding. At the Moonlight Basin community level specifically, 2025 produced 37 closed sales at a median price exceeding \$10 million; 17 of those 37 sales -- not an additional or separate tally -- were One&Only Moonlight Basin private homes, which set the benchmark for luxury pricing in the area, with active inventory spanning from entry-level condos near \$2.8 million to single-family homes approaching \$15 million -- the same tier MBW's own \$4.5 million to \$10 million pricing occupies. That performance sits alongside the rest of CrossHarbor's Big Sky platform: Yellowstone Club alone, on 15,200 acres with 885 member families, recorded over \$1 billion in sales in 2025 -- the same institutional sponsor and delivery team standing behind MBW.

Set against Beverly Hills, the comparison holds on a price-per-square-foot basis, not just headline price. Prime Beverly Hills neighborhoods (The Flats, Mulholland Estates) trade at roughly \$1,370 to \$1,800+ per square foot, with a citywide single-family sold median near \$6.3 million against an \$8.8 million list median, and the top 10% of 90210 sales carrying a median price around \$26 million. Big Sky's own \$1,037 median list price per square foot and the Moonlight Basin platform's \$10 million-plus median sale price sit inside that same pricing band -- placing Big Sky's ultra-luxury tier meaningfully closer to Beverly Hills than to a typical mountain-resort market. Big Sky offers that pricing power alongside development runway a fully built-out market like Beverly Hills no longer has: MBW's 970-acre footprint sits inside the broader Moonlight Basin community, which carries entitlement for up to 1,651 units community-wide, so further appreciation here is supported by both demonstrated price growth and remaining community-wide supply to build into it, not scarcity alone.

月光盆地西区 —— 投资者问答回复

针对拟议 8000 万美元 EB-5 扩募（贷款由 1.72 亿美元增至 2.52 亿美元）的投资者问题回复

依据 MBW 贷款进展报告、BSIH 经审计财务报表（毕马威，截至 2025 年及 2024 年 12 月 31 日）以及 Baker Tilly 2026 年 5 月就业创造分析更新——2026 年 8 月

一、开发商资金与股权投入

2.05 亿美元股权增加——资金来源与形式

投资者问题：扩容看到开放商增加 205,450,672 投资，请问这部分钱的来源？扩容会稀释标的物，请提供开发商追加投资的证明。增加的 4.22-2.17=2.05 亿，是什么时候至什么时候追加，以什么形式追加，现金还是不动产，如土地，如何评估得出价值 2.05 亿？扩容前开发商投入的资金有多少？

回复：2.05 亿美元（205.5 百万美元）可拆分为两部分，但严格意义上的“增加”其实只有一次。2023 年最初的 PPM 从第一天起，就同时披露了 1.504 亿美元的目标发售金额（Target Offering Amount）和 1.72 亿美元的最高发售金额（Maximum Offering Amount）——《贷款协议》与《经营协议》从设立之初即按最高 1.72 亿美元起草，因此募资规模达到 1.72 亿美元这一水平本身，并不需要另行取得投资人同意或签署修订文件，这本来就是原始发售条款下可以达到的上限。开发商股权也随着募资推进相应增长，从 2.169 亿美元（对应原始 3.673 亿美元预算）增至 2.769 亿美元（对应 4.489 亿美元预算，该预算资金用于建设 Madison 8 缆车及 O&O MB 区域基础设施，两者均已完工）——按金额计算增加了 6000 万美元，但这只是募资逐步接近其既有上限的自然结果，并非新上限获批准的结果。本次拟议的 8000 万美元方案则性质不同：这是历史上第一次由管理人请求投资人将最高发售金额本身上调，从 1.72 亿美元提高至 2.52 亿美元，具体通过本报告其他部分所述的《增加最高发售金额同意书》及《经营协议第 2 号修订案》完成。该次增加将为开发商股权新增 1.454 亿美元

（2.769 亿→4.224 亿美元），同时对应 8000 万美元的新增贷款。新增的 1.454 亿美元与项目预算中各成本类别的增加额逐项对应：一般规划/道路/配套设施 4610 万美元、道路及公用设施 1530 万美元、高尔夫会所 5620 万美元、住宅建设 4400 万美元、费用及管理费用 4180 万美元，以及应急准备金 2200 万美元——合计新增成本 2.254 亿美元，由新增股权 1.454 亿美元加新增债务 8000 万美元共同出资。这是与逐项列明的建设预算相匹配的现金出资，而不是对已拥有土地的评估性增值。

2.769 亿美元这一数字，是与 1.72 亿美元发售上限、对应 4.489 亿美元总预算逐项成本类别相匹配的开发商股权累计承诺出资额（原始 2.169 亿美元对应 3.673 亿美元原始预算，加与该上限相伴随的预算增长部分 6000 万美元）——这是来自已批准《资金来源与用途表》的资本结构承诺数字，并不表示这笔资金已全部实际支出于已完成的建设工程。

该股权承诺的根本来源，是 BSIH 的整体运营平台，而非单一的外部融资：BSIH 旗下全部俱乐部（Yellowstone Club、Spanish Peaks、Montage Big Sky、One&Only Moonlight Basin，以及 MBW 自身）产生的住宅、地块及单元销售收入，加上平台持续产生的俱乐部及地产相关收入，共同构成了开发商股权出资在需要支取时的资金来源。项目迄今实际支出的资金（涵盖全部资金来源）为 1.715 亿美元（详见下文“历史已投入资金来源”一节），其中 1.597 亿美元来自 EB-5 贷款支取，另约 1250 万美元来自股权及其他非 EB-5 资金来源——2.769 亿美元股权承诺中的余下部分，将随预算的逐步支出而分批支取，这与《贷款协议》“余额平衡”条款（第 4.20 条）保持一致，该条款要求股权出资的支取节奏与项目尚未支出的预算部分保持相应比例。若 BSIH 某一时期的销售或收入未能覆盖当期应支取的股权出资，CrossHarbor 可在 CrossHarbor 投资基金层面调配资金予以补足，因此股权出资并非单独依赖某一社区或某一俱乐部自身的销售节奏。

这一补足机制并非临时性的权宜之计——而是 CrossHarbor 本身业务性质决定的。CrossHarbor Capital Partners 是一家私募股权房地产投资公司，并非被动的贷款方，也不是仅围绕单一项目运作的发起方；为房地产开发项目提供股权资本，正是其 113 亿美元资产管理平台的核心业务，该平台拥有 32 年经营历史，已为 100 多家机构投资者完成 380 多笔交易。发起 EB-5 项目只是 CrossHarbor 为其开发项目融资的方式之一，与之并行的，是该公司专门为此类房地产项目募集的更广泛的机构股权资本基础。因此，实际的资金支取顺序是：在正常情况

下，首先由 BSIH 自身的销售及运营收入为股权出资提供资金；若某一时期出现缺口，CrossHarbor 凭借其作为房地产私募股权公司的既有职能定位及机构资本基础，可直接补足该缺口，而无需另行临时募集资金。

实际出资与数字估算

投资者问题：关于计划增加 EB-5 8,000 万美元募集，越港方也应该跟随增加投资的问题.....詹姆斯 PPT 报告中介绍的股东权益投入增加的说法应该仅仅是一种数字上的估算.....抵押品增加了 35 套住宅，土地面积增加了吗？开发商自有出资是否增加？开发商实际投钱了吗，还是只是股权投资？

回复：股权承诺已经增加，且增幅超过贷款本身：新增开发商股权承诺 1.454 亿美元，对应新增 EB-5 债务 8000 万美元——即 1.82 倍的匹配比例，其依据是上文所列具体成本类别预算，而非土地评估。1.454 亿美元是与已批准预算相匹配的资本化承诺金额，将随施工进度分批支取，而非在方案获批后一次性全额到位——项目迄今在全部资金来源下的实际支出为 1.715 亿美元，对应目前已批准的 4.489 亿美元预算，因此无论是贷款额度还是股权承诺，绝大部分都仍在项目前方尚未支取，而非已经落后。MBW 项目的总占地面积仍约为 970 英亩；从 82 套增加到 118 套住宅/地块，是在同一占地面积内、以及月光盆地社区整体已获批密度（全社区共 1,651 个已获批单位）范围内增加的密度，并非新增土地。项目各社区目前共有 39 套住宅/地块正在积极销售中。

扩容前后股权与出资比例

投资者问题：再次募集资金，反而 EB-5 所占比例下降，由 40% 下降到 37%，那是因为建设方还增加了股权资金，是多少？通过资产评估增值的会计方法，是否采用？扩募中项目方资金增加，请问是股权吗？

回复：是的，且数字可以精确对应：在 1.504 亿美元目标发售金额水平下，贷款占 3.673 亿美元总预算的 40.9%。随着募资逐步接近发售最初设定的 1.72 亿美元上限——由于 1.72 亿美元本就是自设立之初即已确定的最高发售金额，这一过程无需任何新的同意或修订文件——贷款占比增至 4.489 亿美元预算的 38.3%。在本次拟议方案下（这是对该上限的首次实际上调），2.52 亿美元贷款占 6.744 亿美元总预算的 37.4%。EB-5 占比逐步下降，完全是因为开发商现金股权的增长速度快于贷款（2.169 亿→2.769 亿→4.224 亿美元）——不涉及资产重估；这是与上文所述成本类别预算相对应的新增现金。

历史已投入资金来源

投资者问题：请提供已投入原五期建设的资金来源。越港资本投入多少资本？原五期投资人的投资款，多少进入了项目？多少投入建设？

回复：在目前 1.72 亿美元 EB-5 贷款中，迄今已支取贷款资金 1.597 亿美元，分三个阶段：2024 年 10 月之前 3690 万美元（23.1%）、2024 年 10 月至 2025 年 9 月 9650 万美元（60.4%）、2025 年 10 月至 2026 年 2 月 2630 万美元（16.5%）。这 1.597 亿美元包含在迄今 1.715 亿美元的项目总成本之内，其中 1.493 亿美元属于 EB-5 合格支出（硬性建设成本 1.43 亿美元+建筑及工程费 630 万美元），其余 1250 万美元的项目总成本由其他非 EB-5 资金来源承担。换言之，迄今支取的 EB-5 贷款资金几乎全部直接用于合格的建设和设计支出——贷款支取金额（1.597 亿美元）与合格支出金额（1.493 亿美元）十分接近，说明投资人资金流失到管理费用/不合格用途的比例极小。

二、抵押品、稀释与风险敞口

抵押品范围与预计效益

投资者问题：需要明确下抵押品，扩募对于整体的标的是稀释的，为了确保彼此还款权益不受影响，是否只是增加了住宅标的物？预计产生多少效益？

回复：贷款并未按投资批次分割——唯一的借款主体 MB West Owner LLC，无论贷款规模是 1.72 亿美元还是拟议的 2.52 亿美元，均以 7.312 亿美元、118 套住宅的整体销售管道作为支撑。新增的开发范围（高尔夫会所扩

建及新增主体建设)使该销售管道增加了 2.196 亿美元(增幅 42.9%,从 5.117 亿美元增至 7.312 亿美元)——这是强化而非稀释抵押品池。扩容后贷款的销售管道覆盖倍数仍为 2.90 倍,低于扩容前的 4.25 倍,但仍接近贷款金额的三倍。

第一顺位与风险敞口

投资者问题: 但我们认为这其实对我们老的投资人来说,是有不确定性风险,假如新增加的房产销售不及预期,没有卖出去,那我们的权益是会减少的,风险是放大了,第一顺位的含金量是会有变化的.....

回复: 不会——无论贷款规模是 1.72 亿美元还是拟议的 2.52 亿美元,该贷款始终持有项目抵押品的第一顺位留置权,且不能被劣后于任何其他债务。这意味着贷款始终由其背后的抵押品直接担保;新增住宅销售速度较慢,并不会改变留置权的优先顺位,也不会使现有投资人被排在任何其他债权人之后。除此结构性保障之外,项目还配有完工担保,确保抵押品本身能够建成,而且 BSIH 经审计财务报表显示,该平台一贯履行其义务的记录:一笔 1900 万美元贷款已两次展期(现到期日为 2027 年 12 月),一笔 4910 万美元抵押贷款已两次展期(现到期日为 2027 年 1 月),且 BSIH 自身披露,截至 2025 年 12 月 31 日,其所担保的每一项投资的公允价值均超过对应贷款的未偿本金。这一组合——不可劣后的第一顺位留置权、完工担保,以及 6.25 亿美元、88%股权支撑的 BSIH 资产负债表——无论任何单个新增单位的销售速度如何,都将持续支撑该贷款。

还款顺序与比例分配

投资者问题: 且还钱的顺序是什么?扩容之后如果只能还款 50%,是所有投资人平分这 50%还是按照进入项目的先后顺序?

回复: 还款按比例(pro rata)分配,但附有一项与维持期(sustainment period)资格相关的限定条件。已完成两年维持期的投资人,将在资金可用时按比例(或在还款能力允许的情况下全额)获得还款。尚未完成维持期的投资人将暂缓获得该笔分配——提前向其还款会使其自身的 EB-5 资格面临风险,因为投资资金必须在维持期内持续保持“处于风险中”的状态。一旦这些投资人完成维持期,将在届时可用资金中按比例获得还款。因此,若某一时点只能偿还 50%的本金,则该 50%将按比例分配给已完成维持期的投资人;仍处于维持期内的投资人需等到完成维持期后,再按比例领取彼时可用余款中属于自己的部分——这不是按投资时间先来后到分配的方式。

三、施工进度与销售时间表

施工进度

投资者问题: 现在为什么施工进度严重滞后?需要合理性的说明和解释!这个施工进度是否合理?所需占用的资金?占总的资金比例多少,多余资金做了什么用途呢?请提供原五期项目的实际建设进度完成比例。

回复: 支出数据显示的是加速,而非滞后:2024 年 10 月之前,EB-5 贷款资金仅支出 3690 万美元(23.1%);而在 2024 年 10 月至 2025 年 9 月这一年内,支出额高达 9650 万美元(60.4%)——超过此前九年的总和;2025 年 10 月至 2026 年 2 月又支出 2630 万美元(16.5%)。这一模式反映出项目已从基础设施/规划阶段进入全面主体建设阶段,而这正是 8000 万美元扩募资金意图支持的阶段。截至 2026 年 5 月,在扩容后 6.744 亿美元总预算中,已发生 EB-5 合格成本 1.493 亿美元。Madison 8 缆车(4300 万美元)自 2024 年 12 月起已完工并投入运营,第 9 洞高尔夫改建已完成,Iron Drive 小屋(首个主体住宅产品)已于 2025 年 11 月破土动工,首批预计于 2027 年 3 月交付。

户数增加(82 套增至 118 套)对工期与还款的影响

投资者问题: 住宅从 82 增加 118,工期需要延长多久,是否还能按照之前约定的时间还钱?

回复: 新增的 36 套单位分布在多个现有及全新产品线中,并非集中在某一个进度滞后的社区:Iron Drive 小屋从 9 套增至 10 套(5620 万→8790 万美元),高尔夫会所草坪住宅从 6 套增至 24 套(4740 万→1.043 亿美

元），同时新增三条全新产品线——高尔夫会所公寓（10套，4150万美元）、Condo Lot 1（8套，7900万美元）、以及 One&Only 定制住宅地块（8套，7280万美元）——而 Lower Hillside 地块则因部分库存重新分类，从 39 套减少至 30 套（1.867 亿→1.172 亿美元）。以上变化并未改变贷款的到期结构——新增的建设范围是在贷款现有初始到期日（2027 年 3 月 1 日）及其最多四次一年展期的框架内统筹安排，而非在此基础上额外叠加展期，且在拟议 2.52 亿美元贷款规模下，同一时间框架内的销售管道覆盖倍数仍为 2.90 倍。

销售节奏与市场评估

投资者问题：资金进入项目，实际已经两年半左右以上了，但实际销售是两个地块。这个节奏和市场评估是否科学？销售进度一般，只卖出一套？

回复：MBW 项目迄今已成交 5 套住宅，合计成交额 2450 万美元，另有 39 套住宅/地块——14 个 Lower Hillside 地块、7 个 White Wolf Knob 地块、8 个 O&O MB 定制住宅地块，以及 10 套 Iron Drive 小屋——正在今夏积极挂牌销售，单套报价 450 万至 1000 万美元。MBW 自身的这些销售活动，还处于更大规模、已被验证的月光盆地整体销售记录之中：自 2024 年 1 月以来，月光盆地社区层面共完成 105 笔交易、成交额 7.813 亿美元；仅过去 12 个月，就完成 36 笔交易、成交额 2.919 亿美元。“只卖出一到两块地”的说法低估了 MBW 自身已完成的成交情况，也未能反映 MBW 所处社区更大范围的销售速度。

项目总体时间表

投资者问题：项目的建造，销售，还款计划是什么样的，核心是时间进度。整个项目的计划进度和实际的进度是否匹配？计划几时建设完成，几时销售完成，几时还款。

依据项目自身时间表列出的主要节点：

- 2023 年 7 月——1.72 亿美元 EB-5 贷款落地。
- 2024 年 12 月——Madison 8 缆车开通。
- 2025 年 7 月——第 9 洞改建场地开始住宅建设。
- 2025 年 11 月——Iron Drive 小屋破土动工（MBW 首个主体建设项目）。
- 2026 年——高尔夫会所及两栋新公寓楼开始建设。
- 2027 年 3 月——首批 Iron Drive 小屋交付业主；同时也是贷款的初始到期日，借款人可自主决定最多展期四次、每次一年（最晚可延至 2031 年 3 月）。
- 2028 年至 2029 年——新住宅及公寓单位上市销售。
- 2029 年 3 月至 2030 年 1 月——预计贷款偿还完成，具体在上文所述初始到期日下可用的展期窗口内实现。

实际进展与该计划保持一致：缆车、第 9 洞改建及 Iron Drive 破土动工均已按期或提前完成。

四、财务透明度、独立审计与资金隔离

子公司经审计财务报表

投资者问题：公司法：借款公司和母公司是独立法人，不互相承担债务债权风险……但是我实际借款的子公司，从投资到现在我都没有见过独立审计的报表，请提供！

回复：该子公司并未单独接受审计，而是由母公司层面的审计所覆盖：BSIH 经审计财务报表（毕马威，截至 2025 年及 2024 年 12 月 31 日）即是对包含 MBW 在内的月光盆地投资的正式审计记录。项目层面实际支出的资金，则通过另一种方式独立核实——即针对开发支出提交并审批的付款申请单（pay applications），这是证明贷款支取资金确实用于真实、已完成建设工程的文件轨迹，而不是通过第二层子公司级别的审计。母公司层面的毕马威审计（确认投资整体财务状况）与付款申请单支取流程（逐项核实实际建成内容）两者结合，构成了投资人所拥有的两项保障，二者用途不同，并非相互替代关系。

母公司担保与完工担保

投资者问题：我看了HOLDING公司的财务报告，虽然可以说你们在大天空地区的其他商业收入是我们EB-5的来源，但这只是一种可能，有什么法律文件支持这种说法？我们要的是实际生效的法律文件。我问这个问题的前提是借款公司的母公司并没有还款担保，只有个完工担保，完工担保对债务债权风险保证没有实际意义。

回复：该项目配有完工担保，确保无论出现成本超支或发起方情况发生变化，项目本身都能够建成。另外，与还款更直接相关的是，MB West EB-5 贷款在项目抵押品上持有第一顺位留置权，且不能被劣后于任何其他债务——因此，无论母公司层面是否存在更广泛的还款担保，该贷款始终由其直接背后的抵押品提供担保。这一组合——确保抵押品建成的完工担保，加上不会被其他债权人排在后面的第一顺位留置权——从法律层面构成了对该贷款的支撑，叠加在本报告其他部分所述的资产负债表及销售覆盖论据之上。BSIH 经审计财务报表（附注 7）另行披露，公司对其被投资方的多笔抵押贷款及建设贷款提供担保，且截至 2025 年 12 月 31 日，所有获担保投资的公允价值均超过对应贷款的未偿本金。

具体文件依据：《完工担保》（由 MB MT Acquisition LLC 于 2023 年 7 月 10 日向 CH MB EB5 Lender LLC 出具）是一项持续性担保，承诺完成项目建设，并与《贷款协议》第 4.20 条（“余额平衡”，Balancing）项下借款人的合规义务相挂钩。另外，《建设抵押合同》中的“税费与留置权”条款要求借款人“维持该物业不存在优先于或等同于贷款人在本抵押合同下权益的任何留置权，permitted exceptions 除外”——这正是不可劣后条款的具体依据。《贷款协议》中对“过渡贷款”（Bridge Loan）的定义进一步强化了这一点：借款人获得的任何过渡性或夹层融资，必须劣后于本 EB-5 贷款，且如有必要还需签署债权人协议（intercreditor agreement）。以上三项条款共同构成了上述完工担保及不可劣后第一顺位留置权答复的法律依据。

随着贷款规模扩大，担保力度并未减弱——本次扩募正在对担保进行正式重申（reaffirmation）。担保人 MB MT Acquisition LLC 正在签署《担保重申函》（Reaffirmation of Guaranties），确认完工担保及 I-526 拒签担保均继续完全有效，并将不受减损地适用于扩容后经修订重述的票据及抵押合同，对应贷款金额为 2.52 亿美元。该重申函同时确认，本次扩募无需担保人另行同意即可推进，因此在投资人及贷款人完成签署后，担保方面不存在任何可能拖延扩募进程的额外审批环节。

资金池独立性与隔离

投资者问题：原五期项目和增发投资款，在一个资金池吗？原五期和增发投资人的还款时间跨度很大，增发投资人的还款资金如何监管？希望原五期财务单独核算，建设资金、售房款、用于还款的资金池，保持独立性。

回复：投资人资金存放于放贷主体（CH MB EB5 Lender LLC）专属账户中，与开发商自身的运营账户相互独立，且该放贷主体账户接受独立审计。贷款支取由 CrossHarbor 会计团队负责跟踪与执行，每一次支取均有独立的支取函（draw letter）予以记录，其中明确标注该笔资金对应的具体投资人——因此存在清晰、可审计的记录，将特定投资人资金与特定支取事项相对应，而非笼统混同的资金池。在账户层面隔离的基础上，全部 EB-5 贷款资金均按照上文所示的单一支取计划执行（3690 万美元/9650 万美元/2630 万美元，合计 1.597 亿美元，对应 1.72 亿美元票据），因此资金支出本身从始至终均可全程追踪。

监管报告

投资者问题：请合理的时段提供项目监管报告和协议约定的年度监管报告。

回复：项目监管并非依靠单一报告，而是分为三个层级进行。首先是放贷主体层面（CH MB EB5 Lender LLC）的独立审计；其次是 CrossHarbor 层面独立进行的会计核算与审计；第三是 BSIH 层面的审计（毕马威，作为附件 A 提供），该审计在其合并投资明细表中涵盖了借款主体。这三个层级共同构成了项目持续性的监管与报告机制，而非单独制作一份独立的“监管报告”文件。

报告频率本身由合同明确规定，并非任意决定：《贷款协议》第 4.11 条要求，在每个财年结束后 120 天内提交经审计的年度资产负债表及利润表，在每个季度结束后 60 天内提交未经审计的季度财务报表，并在每月结束后 30 天内提交项目成本的月度核算——上述报告均按合同要求定期提交给贷款人，是对上文所述三层审计结构的进一步补充。

五、战略逻辑、扩募原因与投资人条款

连续扩募逻辑与替代方案

投资者问题：为什么去年8月扩容后，现在再次扩容，而不是进行二期项目，三期项目？扩容后，如果未来资金仍然不足的话，是继续扩容还是项目方追加资金？还是有其他方式解决？

回复：选择延展现有发售、而非启动二期或三期新项目，可以保留同一笔贷款、同一抵押品池，以及已经运作良好的同一套治理架构，而不必从零开始搭建新的资本结构、新的抵押品和新的投资人基础。这一结构本身已经展现出一定弹性：2023年最初的PPM将发售上限（最高发售金额）设定为1.72亿美元，而初始目标为1.504亿美元；此后新增的建设范围——Madison 8缆车及O&O MB区域基础设施，两者现均已完工并持续产生价值——正是在募资逐步接近这一既有1.72亿美元上限的过程中被吸纳的，并未触发任何新的增资审批或投资人同意程序。而本次8000万美元的方案性质不同：这是管理人历史上首次请求投资人将最高发售金额本身上调，从1.72亿美元提高至2.52亿美元，具体采用《经营协议》专为此类情形设置的修订机制（第15.1条：须经管理人及持有多数份额的投资成员书面同意）。该同意已通过《增加最高发售金额同意书》予以记录，现有投资人据此批准本次增加本身、相关贷款修订，以及《经营协议第2号修订案》——该修订案删除了“目标发售金额”这一定义术语（由于发售规模现已统一设定为单一数字2.52亿美元，该术语已无必要），并相应重述发售规模。本次8000万美元资金用于支持特定的、已在进行中的建设范围（高尔夫会所扩建、新增主体建设），正是这部分建设带来了2.196亿美元的销售管道增长，同时保持杠杆水平稳健（贷款占总成本37.4%）且股权匹配（1.82倍）。若本次增资后资金需求再次增长，同一修订机制——须经多数投资人同意——仍可在启动任何新一期项目之前优先适用。

投资期计算与延展期条款

投资者问题：原项目已经在2024年开始算投资期了，那么扩募的客人的时间从什么时间开始算起？由于原来的文件上约定后面两个一的延展期是需要股东表决的，那么后扩募进来的客户是有时间差的，会不会变动这以约定，去掉股东的表决，用满7年呢？

回复：新增的扩募资金将并入现有贷款，而非形成单独的票据，因此扩募投资人适用的贷款条款与原始批次投资人完全相同——包括相同的投资期计算方式，以及下文将精确说明的同一初始到期日（2027年3月1日）。扩募投资人并不存在单独、起算时间更晚的投资期；他们加入的是自2023年7月起持续运作至今的同一笔2.52亿美元贷款。关于展期机制，该结构在项目临近推出前已作调整：现行条款为3年基础期限，附最多四次每次一年的展期，展期由借款人单方决定，无需股东表决。这与原始文件中提及的“两次展期需股东表决”机制不同，也与问题中提到的“7年锁定期”结构不同，但实际达到了问题所关切的结果：展期无需投资人批准即可推进。该结构已固定，本次扩募不会对其进一步调整；本次拟议方案影响的是贷款金额，而非展期机制本身。

本次扩募所签署的经修订重述的《贷款协议》第2.6.1条对该机制作出了精确确认：初始到期日为2027年3月1日，借款人可自主决定，通过在初始到期日或前一展期期满前至少三十天向贷款人发出书面通知，将贷款期限延展四次、每次一年——该条款中并不存在任何需要投资人或股东表决的内容。

不可抗力与就业分配

投资者问题：若同意扩募后项目发生不可抗力因素的情况下，就业分配是按照投资人投资项目的先后时间来分配吗？还是平均分配？

回复：按时间先后顺序分配，依据投资人向美国移民局（USCIS）递交申请的先后顺序。在不可抗力情形下，较早递交申请的投资人在就业分配上排在较晚递交申请的投资人之前——这与上文所述的还款方式（按维持期资格比例分配）不同，因此投资人不应假定两种机制运作方式相同。以完工时预计创造8,034.6个工作岗位，对照目前约215名投资人所需的约2,150个工作岗位的要求，即便采用按时间顺序分配的方式，仍有远高于最低要求的充足余量。

Baker Tilly 的就业数据依据可独立核实的方法计算，并非粗略估算：该分析对实际及预计硬性建设成本与 EB-5 合格软性成本，采用蒙大拿州 Madison、Beaverhead、Gallatin 及 Jefferson 四县的 2020 年 RIMS II 最终需求乘数——非住宅建筑施工（NAICS 代码 2362）为 14.4140，建筑与工程相关服务（NAICS 代码 5413）为 12.2329——与原始 I-526E 经济分析所采用的乘数保持一致。另外，若某位投资人自身的 I-526 申请因与欺诈或不配合无关的原因被拒，《贷款协议》第 4.21 条要求在 180 天内退还该投资人的具体出资金额，并由担保人的 I-526 拒签担保为此项义务提供支持——这是与上文所述不可抗力下就业分配顺序相独立、并额外提供的一项保障。

老投资人权益保障

投资者问题：扩容后，如何保障现有投资人利益，包括还款周期、就业创造等。请提供证明你们的现金流没有问题，另外开发商说不止一种还款途径，如何证实？

回复：扩容后有三条独立渠道支撑还款：

- 住宅销售——118 套住宅、7.312 亿美元的销售管道，可将扩容后 2.52 亿美元贷款覆盖 2.90 倍，目前已成交 2450 万美元，另有 39 套住宅/地块正在积极销售。
- 缆车收入——Madison 8 缆车依合同向 Boyne Mountain 收取的选择权费用（前五年每年为 4300 万美元造价的 8%，此后永久提升至 12%），或 Boyne 选择以 4300 万美元全款买断该缆车。
- 平台及发起方支持——6.25 亿美元、88%股权支撑的 BSIH 资产负债表，以及一贯以展期而非违约方式履行义务的记录（1900 万美元贷款两次展期至 2027 年 12 月；4910 万美元抵押贷款两次展期至 2027 年 1 月）。

在就业创造方面，Baker Tilly 独立分析显示，截至 2026 年 5 月，项目已创造 1,893.6 个工作岗位，计入全部在建项目后将增至 4,496.7 个，项目完工时预计达到 8,034.6 个。以目前 1.72 亿美元贷款金额计算（按标准 80 万美元最低投资额，约 215 名投资人），项目要求的每位投资人 10 个工作岗位标准，合计约需 2,150 个岗位——完工时预计的 8,034.6 个岗位几乎是该要求的四倍，且这一充裕余量会随着本次扩募资金支持的新增建设而进一步扩大，而非缩小。

六、法律合规、文件与行政事项

I-956F 修正案与绿卡影响

投资者问题：956F amendment 如果不成功，是否会影响老投资人的绿卡。

回复：此项无需担心。虽然 PPM 中一般性的移民风险提示指出，美国移民局（USCIS）政策手册将投资人递交 I-526E 申请之后、至其实际以有条件永久居民身份移民美国之前这段期间内项目发生的重大变更（material change），视为可导致该投资人 I-526E 申请被拒绝甚至被撤销的理由，但该风险提示属于一般性披露，并非针对本次扩容的具体评估。公司的移民法律顾问 Robert Divine——其本人已处理过数百起此类案件——已明确意见：本次扩容中住宅数量及贷款金额的更新，不构成 USCIS 认定意义上的“重大变更”。据此，若 I-956F 修正案未获批准，其影响仅限于扩容发售项下新投资人可适用的条款；不会为目前处于 I-526E/I-829 流程中任何阶段的现有投资人带来 I-526E 被拒绝或撤销的风险。

签字流程与要求

投资者问题：文件中，客户需要签字的页码及签字要求，是否可以电子签和代签？中文还是英文？

回复：接受代签，但必须附有说明——投资人需提供代签的依据（例如授权委托书或其他能够证明代签人有权代表投资人签署的文件），而不能仅由他人代为签署而不附任何说明。电子签名可以接受，且无需附加上述说明要求。文件可以用英文或中文签署，投资人可选择自己更熟悉的语言版本进行签署。

需要投资人本人签字的页面包括：（1）认购协议（Subscription Agreement）本身的签字页（“认购人”栏，若认购人为未成年人，还需监护人/托管人共同签署）；（2）附件 A《投资人信息表》，该表单单独设有签字栏，用以确认所填信息真实准确；（3）附件 B《美国国税局 W-8BEN 表》，适用于非美国籍投资人，须在承

担刑事责任的声明下签署。同一文件包中的“接受”（Acceptance）页由 CH MB EB5 Manager LLC 代表基金签署，并非投资人签署页——该页仅用于确认基金已接受该笔认购，投资人无需在该页签字。另外，CH MB EB5 Lender LLC《经营协议》（Operating Agreement）本身的签字页仅由管理人（Manager）及初始成员（Initial Member）在设立时签署；各投资人是通过签署认购协议而成为“投资成员”（Investing Member），并非单独在经营协议上签字。

本次 8000 万美元扩募还涉及一项独立于上述认购协议文件之外的额外签字要求：《增加最高发售金额同意书》（Consent to Increase Maximum Offering Amount），须由持有多数已发行份额的投资人签署，以批准

（一）本次增加本身，（二）相应的贷款修订，以及（三）经营协议修订。该同意书签字页要求填写投资人签名、姓名（打印体）、地址、电话、税号或社会安全号码，以及电子邮箱；若投资成员为未成年人，还需依据特拉华州《统一未成年人转移法》由监护人/托管人共同签署——上文所述的代签及电子签名规则同样适用于该同意书。

财务报表索取

投资者问题：大天空控股公司-MB MT acquisition company 的财务报表可以提供吗？母公司财务报表以及五期独立的三方审计报告。

回复：MBMT Acquisitions, LLC 并没有其自身独立的财务报表。该公司属于所谓的“视为不存在实体”

（disregarded entity）——即一家全资子公司，出于税务及会计目的，不被视为与其所有者相独立的主体。该公司并不单独申报或接受审计，其全部资产、负债、收入及费用均直接并入母公司账目，如同该子公司在会计上并不作为独立主体存在。正因为 MBMT Acquisitions 属于此类“视为不存在实体”，其财务状况已完整地包含在 BSIH 的合并经审计财务报表之中，而不会单独列报。BSIH 经审计财务报表（毕马威，截至 2025 年及 2024 年 12 月 31 日）已作为附件 A 提供，即为该请求的完整、正确答复；不存在需要额外提供的、针对 MBMT Acquisitions 或原五期单独出具的第三方审计报告。

项目开发商定位与对比

投资者问题：越港是否打造出来有代表性的知名楼盘，价格真的可以媲美比佛利山庄？

回复：CrossHarbor 在大天空（Big Sky）的开发平台，涵盖美国山地度假市场中一些最具知名度的超高端度假品牌——Yellowstone Club、Spanish Peaks、Montage Big Sky，以及自 2025 年 11 月起投入运营的 One&Only Moonlight Basin（One&Only 品牌在美国的首个项目，也是其在全球范围内首个高山滑雪度假项目，由负责 MBW 开发的同一团队 Lone Mountain Land Company 开发）。公司本身管理资产规模达 113 亿美元，拥有 32 年的经营历史，已为 100 多家机构投资者完成 380 多笔交易。月光盆地平台上的定价水平（定制住宅地块及住宅挂牌价在 450 万至 1000 万美元甚至更高），处于美国顶级奢华度假及第二居所市场的价格区间之内。

这一对比背后的市场数据是具体、可核实的，而非泛泛之谈。大天空地区每平方英尺成交中位价，从 2018-2019 年冬季的约 370 美元，升至最近这个冬季的约 891 美元——涨幅超过 140%——即便蒙大拿州整体度假住宅市场已从 2021 年高点回落超过 70%，大天空自身的成交量所保住的市场份额也远高于该州整体的跌幅，这反映的是持续性需求，而非正在退潮的投机性上涨。仅就月光盆地社区而言，2025 年共完成 37 笔成交，中位成交价超过 1000 万美元；这 37 笔成交之中——并非另行独立统计的部分——有 17 笔为 One&Only Moonlight Basin 私人住宅，正是这些住宅确立了该区域的奢华定价标杆，在售库存涵盖从约 280 万美元的入门级公寓，到接近 1500 万美元的独栋住宅——与 MBW 自身 450 万至 1000 万美元的定价处于同一档次。这一表现，与 CrossHarbor 在大天空平台的其他项目表现相互印证：Yellowstone Club 一家，占地 15,200 英亩、拥有 885 个会员家庭，2025 年销售额即超过 10 亿美元——而这正是与 MBW 背后同一发起方、同一开发团队的项目。

与比佛利山庄相比，这一对比不仅体现在总价上，在每平方英尺单价上同样成立。比佛利山庄核心区域（The Flats、Mulholland Estates）每平方英尺成交价约在 1,370 至 1,800 美元以上，全市独栋住宅成交中位价约 630 万美元，挂牌中位价约 880 万美元，90210 邮编前 10% 高端成交的中位价约 2600 万美元。大天空自身挂牌中位每平方英尺价格约 1,037 美元，月光盆地平台超 1000 万美元的中位成交价，均落在与比佛利山庄相近的价格区间之内——这使大天空的超高端产品线，在定价层级上更接近比佛利山庄，而非一般山地度假市场。与已

全面开发、难有增量空间的比佛利山庄不同，大天空同时具备这一定价能力与尚未耗尽的开发空间：MBW 项目 970 英亩的占地范围，处于更大范围的月光盆地社区之内，而该社区整体享有最多 1,651 个单位的已获批密度权益，这意味着未来的进一步增值，既有已验证的价格增长支撑，也有可供社区继续开发的土地供给支撑，而非单纯依靠稀缺性。